

SENATE No. 618**The Commonwealth of Massachusetts**

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act banning the retail sale of dogs, cats, rabbits, and guinea pigs in pet shops.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>2/3/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>2/7/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/7/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>2/18/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/26/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/26/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Adam J. Scanlon</i>	<i>14th Bristol</i>	<i>3/5/2025</i>
<i>John J. Cronin</i>	<i>Worcester and Middlesex</i>	<i>4/29/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>4/29/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>7/7/2025</i>

SENATE No. 618

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 618) of Jason M. Lewis, Michael O. Moore, Michael D. Brady, James K. Hawkins and other members of the General Court for legislation to ban the retail sale of dogs, cats, rabbits, and guinea pigs in pet shops. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act banning the retail sale of dogs, cats, rabbits, and guinea pigs in pet shops.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 39A of chapter 129 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 1, before the word “Every”, the
3 following letter:- (a)

4 SECTION 2. Said section 39A of said chapter 129 of the General Laws, as so appearing,
5 is hereby further amended by striking out, in line 13, the word “section”, and inserting in place
6 thereof the following word:- subsection

7 SECTION 3. Said section 39A of said chapter 129 of the General Laws, as so appearing,
8 is hereby further amended by inserting after subsection (a) the following 3 subsections:-

9 (b) No person engaged in the business of operating a pet shop for which a license must be
10 obtained pursuant to subsection (a); and are regulated under 330 CMR 12.00 shall sell or offer
11 for sale a dog, cat, rabbit, or guinea pig.

12 (c) Subsection (b) shall not be construed to prohibit a pet shop from offering space to an
13 animal rescue or shelter organization to showcase dogs, cats, rabbits, or guinea pigs for adoption
14 so long as the pet shop does not have an ownership interest in the animals offered for adoption.

15 (d) Nothing in subsections (b) or (c) shall affect the authority of any town, city, or other
16 locality to regulate or prohibit the sale of dogs, cats, rabbits or guinea pigs.

17 SECTION 4. This act shall go into effect 90 days after its passage.